

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-21

PKDC, LLC,
Complainant,

v.

CMA CGM S.A.,
Respondent.

MOTION TO FURTHER EXTEND SCHEDULING DEADLINES

Pursuant to Rules 502.69 and 502.102 of the Commission’s Rules of Practice and Procedure, Complainant, PKDC, LLC, moves for an approximately two-week extension of the remaining scheduling deadlines to allow additional time for briefing.

Following the entry of the March 27 Order extending scheduling deadlines, the parties completed all discovery by the April 10, 2026 deadline. The March 27 Order sets May 11, 2026, as the deadline for Complainant’s initial brief, proposed findings of fact, and appendix. And the March 27 Order further states that “no further extensions will be granted absent exigent circumstances.” Complainant respectfully submits that exigent circumstances exist, warranting a two-week extension to the briefing deadlines.

First, the unexpected departure of Complainant’s lead counsel has left Complainant’s remaining counsel very little time to review the voluminous record while also beginning to draft the initial brief and proposed findings of fact, and compile an appendix, alone. Lead counsel for

Complainant, Mr. Jason M. Kenner, unexpectedly departed undersigned counsel's firm and left the practice of law effective April 13, 2026. Additionally, Mr. Andrew Margolis, also counsel for Complainant, due to serious health issues, has not worked on this matter for some time and is currently unable to assist in representing Complainant. Complainant has thus moved to withdraw both attorneys as counsel. And although undersigned counsel has begun drafting Complainant's initial brief and proposed findings of fact and compiling an appendix in order to comply with the May 11, 2026 deadline, an additional two weeks is necessary to complete these documents and allow sufficient time for client review.

Second, undersigned counsel has been unable to devote the time necessary for reviewing the record and preparing the filings due on May 11, 2026, due to the unexpectedly heavy press of other matters. These matters include preparing a motion for summary judgment that was due on April 30, 2026, in *Lutron Elecs. Co., Inc. v. United States*, Court No. 22-264 (Ct. Int'l Trade), for which Mr. Kenner was formerly responsible; as well as an unexpected proceeding seeking a temporary restraining order and preliminary injunction in *ICON EV LLC v. United States*, Court No. 26-2759 (Ct. Int'l Trade filed Apr. 13, 2026), which required expedited briefing between April 13 and 20, 2026, and preparation for and attendance at two in-person hearings on April 21 and 23, 2026, among other things. Additionally, undersigned counsel is getting up to speed on a number of other matters for which Mr. Kenner was formerly responsible, including *PKDC, LLC v. COSCO Shipping Lines Co., Ltd.*, Docket No. 25-07 (by agreement of the parties, discovery responses due May 6, 2026); and a number of cases in active litigation at the U.S. Court of International Trade, including *Tree Island Indus. Ltd. v. United States*, Court No. 25-19 (by agreement of the parties, discovery responses due May 12, 2026); *Target General Merchandise, Inc. v. United States*, Court No. 22-318; *Gum Prods. Int'l, Inc. v. United States*, Court No. 25-

109; as well as a number of matters that are in settlement negotiations, including *United States v. Iron Mule Prods., Inc.*, Court No. 24-222.

Third, in light of departure and unavailability of Complainant's original counsel, Complainant has retained additional counsel with experience practicing before the Commission to assist in this matter. The requested two weeks are likewise necessary to afford new counsel sufficient time to review the record and drafts of the initial brief, proposed findings of fact, and appendix.

For all these reasons, Complainant submits that exigent circumstances exist warranting the extension of the remaining deadlines by approximately two weeks. Complainant requests that the remaining deadlines be extended as follows:

Original Date	Requested Date	Scheduling Deadline
May 11, 2026	May 26, 2026	Complainant's initial brief, proposed findings of fact, and appendix
June 10, 2026	June 25, 2026	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
June 22, 2026	July 7, 2026	Complainant's reply and responses to proposed findings of fact

On May 4, 2026, undersigned counsel conferred with counsel for Respondent to seek Respondent's consent to this motion. On May 4, 2026, counsel for Respondent stated that Respondent does not oppose Complainant's request for an extension of the remaining scheduling deadline by approximately two weeks.

For these reasons, Complainant respectfully moves that its request to extend the remaining scheduling deadlines by approximately two weeks be granted.

Respectfully submitted,

SANDLER, TRAVIS & ROSENBERG, P.A.

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By: /s/ Luke Mathers

LUKE MATHERS

Dated: May 4, 2026

CERTIFICATE OF SERVICE

I certify that on May 4, 2026, the foregoing submission was served by electronic mail on all counsel of record, in accordance with 46 C.F.R. Part 502 and the Commission's Order of May 12, 2020, as follows:

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